

25STCP02924 25STCP02924

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Case Number: 25STCP02924 Hearing Date: September 15, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JE REAL

ESTATE HOLDING COMPANY, LLC,

Petitioner(s),

vs.

CITY OF LOS ANGELES,

Respondent(s).

Case No.:

25STCP02924

Hearing Date:

September 15, 2026

[TENTATIVE] RULING ON PETITION

FOR WRIT OF MANDATE

Petitioner JE Real Estate Holding Company, LLC ("Petitioner") petitions for writs of traditional and administrative mandate against respondent City of Los Angeles ("Respondent"), directing it to set aside the decision to revoke Petitioner's permits to build a truck and trailer storage yard ("Project") at 832 N. Dominguez Ave, Wilmington, CA ("Property") and to allow heavy truck access to the Property.

The petition for writ of mandate is granted.

I.

Factual Background

Petitioner owns the Property, a 41,786 square foot parcel on Dominguez Avenue and Sanford Avenue within the Wilmington-Harbor City Community Plan ("Plan") area and zoned [Q]MR2-1VL-O-CUGU. (AR 39.) Zoning code MR2 indicates light industrial land uses. (AR 39.) The prefix [Q] indicates a qualifying condition, here:

"No cargo containers may be kept or stored on the site. However, this condition shall not prohibit the loading and/or parking of trucks and truck trailers, including containers on wheels, provided that no trailers or containers may be 'stacked' vertically at any time, and that any truck loading or parking facility shall maintain a landscaped buffer at least 10 feet wide that includes trees and/or shrubs, designed to visually screen the use, facing any residential zone that is adjacent, or directly across a street or alley." (AR 40-41.)

The Property is also within Respondent's Clean Up Green Up ("CUGU") Supplemental Use District which requires clearance from Respondent's Department of Building and Safety ("LADBS") affirming compliance with objective standards. (AR 40-41; see Los Angeles Municipal Code ["LAMC"] § 13.18.)

On September 30, 2021, LADBS issued a building permit and certificate of occupancy for the Property ("Permit") specifying the use "OPEN STORAGE TRUCK AND TRAILERS AND 6-CAR PARKING". (AR 230.)

On April 29, 2024, Citizens for a Better Wilmington

("Appellant") filed a Request for Modification of Building Ordinances with LADBS seeking revocation of the Permit. (AR 227.) On June 25, 2024, LADBS issued its written decision determining that it had not erred or abused its discretion in issuing the Permit and other permits on the Property for a fence, grading, and a trash enclosure. (AR 218, 224.)

On July 9, 2024, Appellant appealed this decision. (AR 524-26.)

On September 23, 2024, a Zoning Administrator ("ZA") heard the appeal. (AR 60.)

On March 5, 2025, the ZA determined that LADBS had not erred or abused its discretion in issuing the Permit and other permits on the Property for a fence, grading, and a trash enclosure. (AR 38, 40, 58, 63.)

On April 18, 2025, Appellant filed an appeal of the ZA's decision to the Harbor Area Planning Commission ("HAPC"). (AR 183-92.) On June 3, 2025, HAPC publicly heard the appeal. (AR 71.) At the hearing, Commissioner Sheikh moved to grant the appeal and overturn the ZA's determination, and HAPC passed the motion (with clarifying amendments) unanimously. (AR 129-35.)

On October 21, 2025, Respondent mailed a Letter of Determination. (AR 755-82.)

II.

Procedural History

On August 4, 2025, Petitioner filed its petition for administrative mandamus. A proof of service filed August 7, 2025 shows Petitioner served Respondent by personal service on August 6, 2025.

On September 4, 2025, Respondent filed its answer to the Petition.

On March 19, 2026, the Court granted Petitioner's motion to compel deposition of Respondent's person most qualified ("PMQ") concerning Respondent's Department of Transportation's installation, interpretation, and enforcement of truck-weight restriction signage on Dominguez Avenue and Sanford Avenue.

On July 2, 2026, Petitioner filed its opening brief. On August 5, 2026, Respondent filed its opposition. On August 28, 2026, Petitioner filed its reply.

III.

Standard of Review

1.

Traditional Mandamus

A petition for traditional mandamus, governed by Code of Civil Procedure (“CCP”) section 1085, is appropriate in all actions “to compel the performance of an act which the law specially enjoins as a duty resulting from an office, trust, or station” (CCP § 1085; see *Rodriguez v. Solis* (1991) 1 Cal.App.4th 495, 501-02.) Mandamus will lie when (1) there is no plain, speedy, and adequate alternative remedy, (2) the respondent has a duty to perform, and (3) the petitioner has a clear and beneficial right to performance. (*Pomona Police Officers’ Assn. v. City of Pomona* (1997) 58 Cal.App.4th 578, 583-84 [internal citations omitted].)

“Generally, mandamus is available to compel a public agency’s performance or to correct an agency’s abuse of discretion when the action being compelled or corrected is ministerial...” (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) Whether a statute imposes a ministerial duty for which mandamus is available, or a mere obligation to perform a discretionary function, is a question of statutory interpretation. (*Id.* at 701.)

In the absence of a ministerial duty, traditional mandamus relief is unavailable unless the petitioner can demonstrate an abuse of that discretion. (See *CV Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 278-79.) An agency decision is an abuse of discretion only if it is “arbitrary, capricious, entirely lacking in evidentiary support, unlawful, or procedurally unfair.” (*Kahn v. Los Angeles City Employees’ Retirement System* (2010) 187 Cal.App.4th 98, 106.) In applying this deferential test, a court “must ensure that an agency has adequately considered all relevant factors, and has demonstrated a rational connection between those factors, the choice made, and the purposes of the enabling statute.” (*Western States Petroleum Assn v. Superior Court* (1995) 9 Cal.4th 559, 577.) In making this determination, the court may not substitute its judgment for that of the agency, whose decision must be upheld if reasonable minds may disagree as to its wisdom. (*Manjares v. Newton*

(1966) 64 Cal.2d 365, 371.) In other words, traditional mandamus is only available when an agency's discretion can be exercised only in one way. (*Hurtado v. Superior Court* (1974) 11 Cal.3d 574, 579.)

In a petition for writ of mandate brought under CCP section 1085, "the petitioner bears the burden of pleading and proving the facts on which the claim for relief is based." (*California Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1153.)

2.

Administrative Mandamus

CCP section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15 ["Topanga"]). CCP section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 ["Fukuda"]). In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 ["Bixby"]; see CCP § 1094.5(c).)

"Substantial evidence" is relevant evidence that a reasonable mind might accept as adequate to support a conclusion (*California Youth Authority v. State Personnel Board* (2002) 104 Cal.App.4th 575, 585 ["California Youth Authority"]) or evidence of ponderable legal significance, which is reasonable in nature, credible and of solid value (*Mohilef v. Janovici* (1996) 51 Cal.App.4th 267, 305, n. 28). Substantial evidence can be the opinion of a single expert (*Coastal Southwest Dev. Corp. v. Coastal Zone Conservation Comm'n* (1976) 55 Cal.App.3d 525, 532), or opinions in a staff report (*Griffin Dev. Co. v. City of Oxnard* (1985) 39 Cal.3d 256, 261).

The court considers all evidence in the administrative record, including evidence that detracts from evidence supporting the agency's decision. (*California Youth Authority, supra*, 104 Cal.App.4th at p. 585.) The court must uphold the decision unless it concludes, based on the evidence before the agency,

a reasonable person could not reach the conclusion reached by the administrative agency. (Harris v. City of Costa Mesa (1994) 25 Cal.App.4th 963, 969.) Where “reasonable persons may differ,” the courts will not disturb the judgment of the administrative agency. (Breakzone Billiards v. City of Torrance (2000) 81 Cal.App.4th 1205, 1246.) The court does not weigh evidence or decide who has the better argument and must resolve reasonable doubts in favor of the findings and decision. (Topanga, supra, 11 Cal.3d at p. 514.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (Steele v. Los Angeles County Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion.” (Alford v. Pierno (1972) 27 Cal.App.3d 682, 691 [“Alford”].)

IV.

Analysis

1.

Traditional Mandamus and Declaratory Relief

Petitioner seeks a writ of traditional mandamus preventing Respondent from enforcing weight restrictions on Dominguez Avenue to the extent such restrictions would, as applied, bar lawful truck access to the Property; a declaration that the posted restriction signs do not prohibit truck access to the Property; or a declaration that the posted restriction signs are illegal and unenforceable. Respondent contends that traditional mandamus and declaratory relief are not available because administrative mandamus is the exclusive remedy for review of the HAPC decision. In reply, Petitioner argues its traditional mandamus claims do not seek review of the HAPC decision but instead challenge the separate, antecedent City action of the City’s Department of Transportation (“LADOT”) posting and enforcement of truck weight restriction signage.

As the Court explained in its March 19, 2026 decision on Petitioner’s motion to compel deposition, the traditional mandamus claim is an independent legal claim challenging

Respondent's compliance with LAMC section 80.36.1(b). (March 19, 2026 Final Decision at p. 7, incorporated by reference into March 19, 2026 Order at p. 1.) Specifically, Respondent posted restriction signage, which, in conjunction with Vehicle Code section 21461, subsection (a) and LAMC section 80.36.1, operates as a de facto prohibition on truck access to the Property, because trucks are prohibited on all possible access routes. (See AR 51 [Zoning Administrator: "thus there are no alternate routes available"].) These claims therefore challenge LADOT's installation and enforcement of the signage rather than HAPC's appellate determination.

The traditional mandamus and declaratory relief claims are also ripe. Respondent frames the issue as requiring the Court either to conclude that Respondent has made no decision regarding truck access to the Property, or to find that any such determination must be attributed to the HAPC, thereby rendering the matter one of administrative mandamus. However, Respondent's position does not account for the effect of its own installation and maintenance of the posted signs. Those signs, when read together with Vehicle Code section 21461, subdivision (a), and LAMC section 80.36.1, operate to restrict truck access to the Property because trucks are prohibited on all possible access routes. (See AR 51 [Zoning Administrator: "thus there are no alternate routes available"].) This constitutes sufficient governmental action to create a present and concrete controversy, and the claims are therefore ripe. (See *California Water & Tel. Co. v. Los Angeles County* (1967) 253 Cal.App.3d 16, 26 [declaratory relief was ripe because utilities needed to know whether an ordinance was valid in order to plan facilities and equipment].)

Accordingly, the Court finds that the traditional mandamus and declaratory relief claims are independent of the administrative mandamus claim and ripe for adjudication.

Arguably, the traditional mandamus and declaratory relief claims are moot, as Respondent claims, "LADOT has since clarified that the weight restriction signs on Dominguez Avenue near the Property do not prohibit truck and trailer access to the Property if access via Dominguez Avenue is the sole access to the Property." (Op. at 13, citing *Hinks Decl., Ex. A* at p. 48-49.) However, Respondent does not affirmatively concede this position in its filings, and the cited PMQ testimony does not constitute an official act, policy, or written determination by Respondent. The Court is not informed of any official determination rescinding or modifying the signage.

The Court therefore cannot conclude that no remaining controversy exists.

For these reasons, traditional mandamus and declaratory relief are available.

While Respondent does not affirmatively concede the question, Respondent fails to raise any arguments about the traditional mandamus and declaratory relief claims except those stated above as to availability of the remedy. Having rejected Respondent's exclusivity and ripeness arguments, the Court briefly addresses the merits.

LAMC section 80.36.1 provides that Respondent may restrict vehicles over 6,000 pounds from traveling on certain streets or portions of streets. (LAMC § 80.36.1(a), (b).) Respondent may impose such restrictions only on streets listed in subsection (d) (LAMC § 80.36.1(a)) or where Respondent makes certain factual determination regarding traffic on the restricted street (LAMC § 80.36.1(b)). In the latter case, alternate routes must be available. (LAMC § 80.36.1(b).) Here, Dominguez Avenue is not a street listed in subsection (d) (LAMC § 80.36.1(d)), and it is undisputed that no alternate routes are available. (E.g. Hinks Decl., Ex. A at p. 48-49; AR 51.) Because the statutory precondition for posting weight restriction signage under subsection (b) is absent, the posted signs on Dominguez Avenue are unenforceable as to truck access to the Property.

Petitioner seeks various forms of relief based on its position that LAMC section 80.36.1(b) does not prohibit trucks from accessing the Property via Dominguez Avenue. These requests include a declaration and a writ finding the signage unlawful and unenforceable, as well as an order directing Respondent to remove the signs. Although Respondent did not address the merits of these requests, the factual record presented by both parties focuses solely on the Property and the question of access to it. On this record, the Court cannot determine whether the posted signs are categorically unauthorized or must be removed in all circumstances. Petitioner bears the burden to establish entitlement to traditional mandamus relief. (California Correctional Peace Officers Assn. v. State Personnel Bd., *supra*, 10 Cal.4th at 1153.) Petitioner likewise bears the burden to demonstrate an actual controversy warranting declaratory relief, and the record shows only a dispute regarding whether trucks may lawfully access the Property using Dominguez Avenue. (Fox Paine & Company, LLC v. Twin City Fire Insurance Company (2026) 20 Cal.5th 188, 832.) The Court therefore denies Petitioner's broader

request for removal of the signage.

Accordingly, Petitioner is entitled to declaratory relief stating that trucks may access the Property by Dominguez Avenue unless and until alternate routes become available, and a permanent injunction preventing enforcement of truck restrictions on Dominguez Avenue against trucks accessing the Property.

2.

Administrative Mandamus

Petitioner contends that HAPC abused its discretion in granting Appellant's appeal and revoking the Permit. Specifically, Petitioner argues HAPC erred by relying on LAMC § 80.36.1, on CUGU, and on the [Q] condition. Petitioner further alleges that the Permit was ministerial and thus HAPC abused its discretion by relying on facts outside the ministerial grounds. Finally, Petitioner alleges the findings do not support the conclusion because HAPC failed to bridge the analytic gap.

In opposition, Respondent argues HAPC's decision was supported under CUGU, based on traffic conditions at the Property and the residential nature of Dominguez Avenue, and under the [Q] condition. Respondent, however, does not address Petitioner's central contention that issuance of the Permit was ministerial and therefore subject only to objective criteria based in the Code.

LAMC section 91.106.4.1 provides that "[w]hen the department determines that the information on the application and plans is in conformance with this Code and other relevant codes and ordinances, the department shall issue a permit upon receipt of the total fees." (LAMC § 91.106.4.1.) This section establishes a ministerial duty once LADBS determines that the application conforms to applicable standards. The administrative appeal at issue challenges LADBS' underlying conformance determination. (See LAMC § 13B.10.2.) Even so, the plain text of LAMC section 91.106.4.1 makes clear that LADBS may deny a permit only based on nonconformance with relevant codes or ordinances.

Accordingly, while HAPC had discretion to resolve factual disputes in evaluating the appeal, it did not have discretion to uphold the appeal and revoke the Permit on grounds unrelated

to whether the application and plans conformed to the governing codes and ordinances.

Respondent identifies various considerations allegedly supporting HAPC's decision, for example, that uses listed in LAMC section 13.18E.2, subdivision (d) "could cause cumulative health effects" (Opp. at 11); that open-ended permits "would be contrary to intent of CUGU" (Opp. at 11); that "Wilmington is a disadvantaged community and is worthy of protection" (Opp. at 11); that the community is "overburdened with open storage facilities" (Opp. at 13); and that trucks "will more than likely be idling on the roads" (Opp. at 13). Neither HAPC's Letter of Determination nor Respondent's briefing, however, explains how any of these considerations demonstrate actual nonconformance in the application or plans. With limited exceptions discussed below, [1] Respondent's arguments therefore do not establish a permissible basis for revoking the Permit.

While the Court reviews administrative agency determinations for abuse of discretion, it addresses questions of law de novo. (Sieg v. Fogt (2020) 55 Cal.App.5th 77, 88 ["the court . . . reviews questions of law de novo, giving respectful consideration to an agency's decision on legal questions to the extent its reasoning is persuasive."].)

Respondent frames certain legal conclusions as factual findings, presumably to avoid this less deferential de novo standard of review. For example, Respondent contends that "[t]he HAPC was presented with evidence that there were three signs on the right, northbound side of Dominguez Avenue that prohibited vehicles over 6,000 lbs. from accessing Dominguez Avenue." (Opp. at 12.) Based on this, Respondent asserts that HAPC found a "conflict of policies" with LAMC section 80.36.1. (Opp. at 12; see AR 65.) This is more properly understood as a legal conclusion that the Permit conflicts with LAMC section 80.36.1, a conclusion reviewed de novo. As discussed above, LAMC section 80.36.1 does not prohibit trucks from accessing the Property using Dominguez Avenue.

Similarly, Respondent argues, "HAPC was presented with evidence that there was conflicting language in the [Q] condition applicable to the Project site." (Opp. at 14.) Again, this presents a legal question. HAPC concluded that the [Q] condition "in essence allow[s]

the storage of cargo containers while intending otherwise.” (Opp. at 14, citing AR at 116-19, 132-35.) This argument is unpersuasive.

The [Q] condition provides, in part, that “[n]o cargo containers may be kept or stored on the site.” It then expressly states:

However, this condition shall not prohibit the loading and/or parking of trucks and truck trailers, including containers on wheels, provided that no trailers or containers may be ‘stacked’ vertically at any time, and that any truck loading or parking facility shall maintain a landscaped buffer at least 10 feet wide that includes trees and/or shrubs, designed to visually screen the use, facing any residential zone that is adjacent, or directly across a street or alley.

(AR 40-41.)

It is fundamental that “each word and phrase in the statute should be interpreted to give meaning to every word and phrase in the statute to accomplish a result consistent with the legislative purpose.” (Segura v. Superior Court (2025) 113 Cal.App.5th 1242, 1252 [internal quotation marks omitted, emphasis in original].) “When the statutory language is clear and unambiguous, there usually is no need for further construction and courts adopt the plain (i.e., literal) meaning of that language.” (Cisneros v. Department of Motor Vehicles (2024) 103 Cal.App.5th 381, 407.)

Here, the condition is not ambiguous. By attempting “to harmonize” the [Q] condition with CUGU, HAPC effectively disregarded the express exception permitting trucks, trailers, and containers on wheels. The statute does not permit excising this exception. While HAPC questioned the motivation behind the exception (AR 120), this provides no basis for discounting its plain text.

To summarize: HAPC could consider evidence and make factual findings, but it could uphold the appeal and revoke the Permit only if it identified nonconformance with applicable codes or ordinances. (LAMC § 91.106.4.1.) HAPC’s generalized policy findings do not constitute findings of nonconformance. The limited exceptions are discussed as follows. (See AR 129-36.) First, HAPC found a conflict with LAMC section 80.36.1. (AR 131.) This conclusion was legally incorrect, and Respondent does

not defend it. Additionally, HAPC has no authority to enforce traffic ordinances. Second, HAPC found the Permit conflicted with the [Q] condition, but this finding relied on disregarding the explicit exception rather than identifying nonconformance. (AR 116-19, 129-36.)

Because HAPC identified no actual nonconformance with relevant codes or ordinances, the findings do not support Respondent's decision.

Accordingly, Petitioner has met its burden to show that Respondent abused its discretion.

V.

Conclusion

HAPC's findings do not support its conclusion. The petition for traditional and administrative mandamus is GRANTED. A writ shall issue directing Respondent to vacate HAPC's decision and reinstate Petitioner's Permit and associated approvals and further declare that trucks may lawfully access the Property via Dominguez Avenue unless and until alternate routes become available. Respondent is enjoined from enforcing weight restriction signage on Dominguez Avenue to prevent such access to the Property.

Pursuant to Local Rule 3.231(n), petitioner JE Real Estate Holding Company, LLC shall prepare, serve, and ultimately file a proposed judgment.

Date:

September 15, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Additionally, Respondent does tie its finding that trucks will likely idle to regulations prohibiting such idling. That is not a violation within the application and plans. Relatedly, LADBS does not have authority to enforce those regulations, which Respondent does not dispute.